

AGREEMENT

This agreement is made and Executed at Bahawalpur on **31th day of July 2025**,

BETWEEN

We, Muhammad Yousaf S/O Sardar Muhammad (CNIC No. 31202-7264836-3), Caste Arain, resident of Chak No. 12 BC, Post Office Same, Tehsil and District Bahawalpur, Khewat No. 117/113, Khatooni No. 504 to 511, Qatat 27, measuring 200 Kanal, transferred share 3/50, Land Measuring 12 Kanal, Muhammad Younas S/O Sardar Muhammad (CNIC No. 31202-8902159-7), Caste Arain, resident of Chak No. 12 BC, Post Office Same, Tehsil and District Bahawalpur, Khewat No. 117/113, Khatooni No. 504 to 511, Qatat 27, measuring 200 Kanal, transferred share 1/50, Land Measuring 4 Kanal, (hereinafter called the VENDORS, which expression includes the heirs, successors & Assigns) of the one part.

AND

Defence Housing Authority Lahore, having its principal office at Defence Housing Authority, Main Office Complex, Sector A Commercial, Phase-VI Lahore Cantt and a project office namely Defence Housing Authority Bahawalpur, Head Office Jinnah Avenue (MB-2) APE Canal Road Bahawalpur, through Brigadier Syed Asher Mehboob, (Retired), (Project Secretary) called Vendee, which expression shall includes where the context so permits its successors in interest, representatives and assignee(s).

WHEREAS the Vendor is the lawful owner of land measuring **Khewat No. 117/113, Khatooni No. 504 to 511, Qatat 27, measuring 200 Kanal, transferred share 2/25, Land Measuring 16 Kanal Total Land Measuring 16 Kanal**, as per Aks Shajrah verified by the Revenue Patwari circle Record of Rights for the Year 2019/2020, Vide Fard ID No. 0-00-00-024-00-00-00-0025354479 dated 12 June 2025, situated in Chak No. 12 / BC Tehsil Bahawalpur Saddar District Bahawalpur, said land of Vendor falls in Housing Scheme of vendee.

AND WHEREAS Vendor is owner in possession, free from all encumbrances and charges, by (Sale Deed or mutation of inheritance whatsoever etc) and has the right to sell, transfer, lien etc the land hereinafter described and has shown his desire and has agreed to sell the said land measuring **16 Kanal**, as shown in Fard Malkiyat (attached as Annex A) provided by the Vendor against _____ residential plot Files of 1 Kanal (500 Sq Yds) each as exemption. After exemption balance held with DHA can be utilized for Vendor, by selling the right to any other person, party or getting as an additional plot by completing _____, in DHA Lahore Bahawalpur Chapter by Vendor.

AND WHEREAS Vendee has agreed to purchase **16 Kanal**, land and is already in possession of said land.

THEREFORE, THIS AGREEMENT WITNESSETH AS UNDER:-

1. That vendee will allocate / allot plots to the Vendor from DHA Lahore, Bahawalpur Chapter as per the town planning of DHA against said land as per agreed terms and conditions, i.e _____ residential plot files of 1 Kanal (500 Sq yds) each against **16 Kanal**, of land subject to provision of documents / handing over possession by Vendor, registration and mutation of land in favour of Vendee. Vendor will pay **Rs.6500/-** as miscellaneous charges per plot file given against land. The development charges will be paid on demand by Vendor to DHA according to the actual cost of development in said Housing Scheme or as per the town planning of DHA.
2. That vendor shall be bound and undertakes to execute and complete the registered sale deed for the transfer of ownership of the land as and when required by Vendee (Allocation letter against **16 Kanal**, i.e _____ residential plot files of 1 Kanal (500 Sq Yds) will be issued by Vendee after registration, possession and mutation of land in favour of Vendee). In case, Vendor does not execute the registered sale deed under the term of this agreement, vendee shall be

entitled to get the sale deed registered before the Sub-registrar in accordance with law and at the expense of Vendee.

3. That vendor confirms that he will provide documents in light of DHA policy (which has been explained to Vendor) and in support of their entitlement of the land to enable Vendor to get the sale deed registered. Vendor will also ensure that whenever required, signatures of the owner / tenants would be obtained on various documents.

4. That if any person claims the title of the sold land at any stage or challenge possession, vendor will be held responsible for clearance of the same at their own risk and cost and vendor shall keep the Vendee harmless and indemnified. Vendee has the right to roll back the complete transaction, at any time in future and all the costs in this connection shall be borne by the vendor if the said dispute is not resolved and circumstances go beyond the control of vendor and there is apprehension of unending litigation.

5. That if any dispute arises between parties regarding any of provision of this agreement, the matter will be referred to Chairman Project Management Committee DHA Lahore Bahawalpur Chapter who shall be the sole Arbitrator. Decision of Chairman / Arbitrator will be final and binding on both parties.

6. That vendor has assured Vendee of his undisputed title over the said land and has also assured to indemnify and keep indemnifying Vendee of any loss occasioned on account of any defect in the title of Vendor or because of any lien, charge or encumbrance of any nature upon the said land or any part thereof, which may be discovered at any time.

7. That residential plots against above mentioned land would be allotted to owner of land in question or nominees / representatives to be nominated by Vendor, through an affidavit.

8. That vendor / its representatives / legal heirs or any person claiming land of Vendee or otherwise etc would be debarred for all times to come to lay any claim with regard to said land. For all particular purposes and in future the land shall be deemed to vest in and owned by Vendee/ or its transferees.

9. That vendor has surrendered his rights regarding Shamlat Deh, School, Graveyard, Watt, Khal, orchards, crops, fittings, fixture and all other easement rights to vendee.

IN WITNESS WHEREOF, the parties herein, have set their respective hands, in their complete senses, executed and signed this agreement at the place and date mentioned herein above and in the presence of witnesses named below:-

VENDORS

VENDEE

Muhammad Yousaf S/O Sardar Muhammad
(CNIC No. 31202-7264836-3), Caste Arain,
resident of Chak No. 12 BC, Post Office
Same, Tehsil and District Bahawalpur
(Vendors)

Brigadier Syed Asher Mehboob, (Retired)
CNIC No. 3203-2091751-3

For and on behalf of
**Defence Housing Authority Lahore,
Bahawalpur Chapter (Vendee)**

Muhammad Younas S/O Sardar Muhammad
(CNIC No. 31202-8902159-7), Caste Arain,
resident of Chak No. 12 BC, Post Office
Same, Tehsil and District Bahawalpur
(Vendors)

LAND PROVIDER

Zulfiqar Ahmad S/O Malik Khuda Bakhsh
(CNIC No. 31202-9057658-5)

WITNESSES

Lieutenant Colonel
Additional Director Land
(Naveed Ahmed, Retired)

Subedar (Retired)
Possession Junior Commissioned Officer
(Muhammad Ramzan)